



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Jonathan Day #119

Work Assignment: Troop/Division - A; Post/Unit – 5 - Dalton

INCIDENT REPORT # DPS00163789

Related Crash Reports: C000954036 ; C000954037 ;

P.I.T. Involved: Yes

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: Yes

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 5/8/2024

Time: 1300 Hours

Location: Post 5 - Dalton

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, SGT Ben Boyd #357 and TFC Jonathan Day #119

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 4/30/2024

Time: 1344 Hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 4/30/2024, at 1344 hours, TFC Day attempted to stop the driver a gold Chevrolet Silverado pickup truck on GA 1 for seat belt and broken windshield violations. When TFC Day activated his blue lights, the violator turn into a parking lot but refused to stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes ☐ No If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes ☐ No If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A If Yes, explain: TFC Day contacted the Troop A Communications Center by radio to advised them that he was in a pursuit and provided his direction of travel. Dispatcher Cain received this information and updated the CAD call.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes ☐ No If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A Explain: Once the pursuit initiated, Dispatcher Cain cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A Troopers. Dispatcher Coffman contacted the Catoosa County 911 Center by telephone to advise them of the pursuit and to request assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on GA 1 south of GA 146 and terminated on GA 1 just north of Hays Street. The pursuit traveled approximately .23 miles and lasted 27 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The violator's actions during the pursuit support a charge of Felony Fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes

☐ No

If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes

☐ No

If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes

☐ No

If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes

☐ No

If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes

☐ No

If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No

If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No

If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

3. Was the in-car camera working properly?

☒ Yes

☐ No

If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☐ N/A

Explain: TFC Day made the decision to execute the Precision Immobilization Technique in order to terminate the pursuit. He did so by making contact with the right rear of the Chevrolet and the left front of his patrol car. However, the first attempt was unsuccessful. During the second attempt, TFC Day once again made contact with the right rear of the Chevrolet and the left front of his patrol car. TFC Day steered left and pushed the Chevrolet in a clockwise manner onto the west edge of the roadway where it came to rest.

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: TFC Day utilized all his emergency equipment throughout the pursuit and operated his patrol car in a responsible manner while commenting and communicating the violator's actions.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daytime hours with cloudy skies and a dry road surface. The traffic conditions at the time of the pursuit would be described as light.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A

If Yes, explain: The pursuit was traveling towards a congested area within the city of Ft. Oglethorpe and TFC Day knew that the local schools would be letting out soon. It was for those reasons he chose to implement the PIT maneuver as soon as it was practical.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A

If Yes, explain: The pursuit was traveling towards a congested area within the city of Ft. Oglethorpe and TFC Day knew that the local schools would be letting out soon. It was for those reasons he chose to implement the PIT maneuver as soon as it was practical.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A

If Yes, explain: During the pursuit, the violator drove at excessive speeds and drove in the center turn lane through the city limits of Ft. Oglethorpe. The violator clearly demonstrated that he had no intentions of stopping for law enforcement and displayed no regard for the safety of others.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A If Yes, explain: TFC Day executed the PIT maneuver in order to terminate the pursuit. There were no units ahead of the pursuit to deploy Stop Sticks or to assist in implementing the Box-In maneuver, along with the pursuit traveling towards a congested area and nearing time for local schools to be letting out. TFC Day's decision to implement the PIT maneuver was objectively reasonable in order to safeguard life and preserve public safety.

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☐ N/A If Yes, explain: The Chevrolet and the Dodge both sustained functional damage as a result of the PIT.

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: TFC Day has been involved in numerous pursuits during his career as a Georgia State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: TFC Day has received E.V.O.C., Advanced E.V.O.C. and Pursuit-Ending Tactics Training.

ISSUES ADDRESSED

1. Positives.

☒ N/A If Yes, explain:

2. Areas for improvement.

☒ N/A If Yes, explain:

3. Other considerations.

☒ N/A If Yes, explain: During the foot pursuit, TFC Day drew and pointed his departmental issued Taser and service weapon. A Use of Force Report was completed.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☐ N/A If Yes, explain: SGT Boyd stated that TFC Day made a good, quick decision to terminate the pursuit, but should have cleared the vehicle of its occupants before running past the vehicle.

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☐ N/A If Yes, explain: TFC Day was counseled on the use of unprofessional language during the foot pursuit.

Lt. T. L. Nichols #36 *Lt. T. L. Nichols #36*
Reviewing Officer

5/30/2024
Date